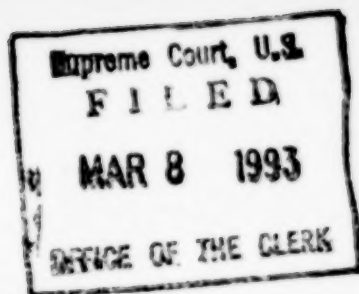


92-1510



NO. _____

IN THE
SUPREME COURT OF THE UNITED STATES
OCTOBER TERM, 1992

MICHAEL J. CAVANAUGH, EXECUTIVE DIRECTOR
OF THE SOUTH CAROLINA DEPARTMENT OF
PROBATION, PAROLE, AND PARDON SERVICES;
SOUTH CAROLINA DEPARTMENT OF PROBATION,
PAROLE, AND PARDON SERVICES,
Petitioner

versus

GARY LEE ROLLER,
Respondent

PETITION FOR WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEALS FOR THE
FOURTH CIRCUIT

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED FOR REVIEW

I.

WAS FEDERAL JURISDICTION FOR ROLLER'S CHALLENGE OF SOUTH CAROLINA'S PAROLE RELEASE SYSTEM PROPER UNDER 42 U.S.C. §1983, OR WAS THE PRISONER'S PETITION ONE WHICH THE COURT OF APPEALS SHOULD HAVE HELD REACHED THE VERY "CORE OF HABEAS CORPUS" AND, AS SUCH, REQUIRED THE PETITIONER TO EXHAUST HIS REMEDIES IN THE STATE COURTS OF SOUTH CAROLINA BEFORE PROCEEDING TO THE FEDERAL COURTS?

II.

IS THE 1986 STATUTORY AMENDMENT TO THE SOUTH CAROLINA CODE, WHICH INCREASES THE TIME BETWEEN PAROLE RECONSIDERATION HEARINGS FROM ONE TO TWO YEARS FOR OFFENDERS CONVICTED OF VIOLENT CRIME, AN INSUBSTANTIAL PROCEDURAL CHANGE OUTSIDE THE PURVIEW OF THE EX POST FACTO CLAUSE, AS THE SUPREME COURT OF SOUTH CAROLINA

HELD IN GUNTER V. STATE, 378 S.E.2d 443
(1989), OR IS THE AMENDMENT ONE WHICH
AFTER THE FACT WORKS A CHANGE OF SO GREAT
A MOMENT THAT THE LAW AS APPLIED TO THE
PETITIONER VIOLATES THE PROHIBITION
AGAINST EX POST FACTO LAWS?

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Fourth Circuit Court of Appeals
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Fourth Circuit Court of Appeals
decision dated January 15, 1993
United States District Court for the
District of South Carolina, Columbia
Division order dated November 1,
1991

Magistrate's Report and Recommen-
dation dated September 10, 1991

STATEMENT OF THE GROUNDS ON WHICH THE
JURISDICTION OF THE UNITED STATES
SUPREME COURT IS INVOKED

Pursuant to the requirements set forth
in S.Ct. Rule 14.1(e), Appellant, the
State of South Carolina, shows the
following:

- (i) The date of entry of the judgment
of the United States Court of
Appeals for the Fourth Circuit for
which the Appellant seeks review
is January 15, 1993.
- (ii) The date of the Fourth Circuit's
order staying the mandate to the
United States District Court for
the District of South Carolina is
February 5, 1993. The order
granted South Carolina's motion to
say the Fourth Circuit's mandate
until March 8, 1993.

- (iii) Not applicable.
- (iv) The Appellant believes that jurisdiction is conferred on the United States Supreme Court by 28 U.S.C. §1254(1) and 28 U.S.C. §1257(a), as characterized in Supreme Court Rule 10.1(a). The former statute allows this Court to review, upon petition for writ of certiorari, cases in the courts of appeals, before or after judgment has been rendered. The latter statute allows the Court to review, also upon petition for writ of certiorari, final judgments rendered by the highest court of a state in which a decision could be had, where the validity of a state statute is being drawn in question on the ground of its being repugnant to

the Constitution. In this matter, South Carolina Code §§16-1-60 and 24-21-645, are being drawn in question on the ground that their application to Appellee Roller violates the Ex Post Facto Clause. Further, Rule 10.1(a) indicates that the Court is likely to consider a matter of such character as this one, in which a United States court of appeals has decided a federal question in a way that conflicts with a state court of last resort. The Fourth Circuit's decision squarely conflicts with the South Carolina Supreme Court's decision in Gunter v. State, 298 S.C. 113, 378 S.E.2d 443 (1989), on the ex post facto question; and on the threshold question of federal jurisdiction

under 42 U.S.C. §1983, it conflicts with this Court's decision in Preiser v. Rodriguez, 411 U.S. 475 (1973), and its line.

CONSTITUTIONAL PROVISIONS AND STATE
STATUTES INVOLVED IN THE CASE

U.S. Const. art. I, §9, cl. 3.

No. . .ex post facto law shall be
passed.

U.S. const. art. I, §10, cl. 1.

No state shall. . .pass any. . .ex post
facto law. . . .

S.C. Code Ann. §16-1-60 (1976), as
amended

For purposes of definition under South
Carolina law a violent crime in-
cludes. . .voluntary manslaughter. . .

S.C. Code Ann. §24-21-645 (1976), as
amended

. . .

[U]pon a negative determination of parole, prisoners in confinement for a violent crime as defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole.

S.C. Code Ann. §24-21-650 (1976), as amended

. . . Upon a negative determination of parole, prisoners in confinement for a violent crime as defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole.

1981 S.C. Acts 100 codified as S.C. Code Ann. §24-21-620 (1976)

. . . Upon a negative determination, the prisoner's case shall be reviewed every twelve months thereafter for the purpose of such determination.

STATEMENT OF THE CASE

The Respondent, Gary Lee Roller, was convicted in the Chester County Court of General Sessions for the crimes of voluntary manslaughter and grand larceny. Both crimes were committed on December 13, 1982. Roller was sentenced on March 25, 1983, to serve thirty years for the voluntary manslaughter and a consecutive sentence of five years for the grand larceny. On October 27, 1990, Roller became eligible for parole under the parole eligibility statute in force on December 13, 1982, the date he committed his crimes. That parole eligibility date has not changed. Roller was heard for parole on October 31, 1990, and parole was denied. According to the procedures set up by the Parole Board, Roller was duly informed in writing of his rejection

and the reasons for it. He was also notified that his next parole hearing would be scheduled on or about October 31, 1992, two years following his rejection, pursuant to the law in effect at the time of his initial parole hearing. S.C. Code Ann. §§24-21-645 and -650 (1976) as amended.

When Roller committed his crimes, the procedural law governing the rescheduling of parole hearings following a rejection set the time at one year. S.C. Code Ann. §§24-21-620, (1976), as amended. Effective June 3, 1986, the law controlling the rehearing procedure was changed to require a two-year period between parole hearings for violent offenders. At the same time, the South Carolina General Assembly enacted §16-1-60, which enumerated those crimes deemed to be violent and included in that

enumeration the crime of voluntary manslaughter. The punishment for voluntary manslaughter, however, remained exactly what it had been when Roller committed that crime in 1982. The South Carolina Supreme Court ruled in Gunter v. State, 298 S.C. 113, 378 S.E.2d 443 (1989), that the decrease in the frequency of parole hearings for violent offenders was a permissible procedural change and did not violate the ex post facto clause of the Constitution.

JURISDICTION

Roller originally brought suit under 42 U.S.C. §1983 in the United States District for the District of South Carolina in December of 1990. On September 10, 1991, the United States Magistrate issued his Report and Recommendation on the parties motions for Summary Judgment. In an Order dated November 1, 1991, the

District Court adopted the Magistrate's Report and Recommendation granting the State of South Carolina's Motion for Summary Judgment. Roller initiated an appeal to the Fourth Circuit Court of Appeals. By an Order dated January 1993, the Fourth Circuit Court of Appeals reversed the District Court. In February 1993, the Fourth Circuit granted the Petitioner's motion to stay the mandate until March 8, 1993. The Petitioner seeks a Writ of Certiorari to review the Fourth Circuit Court of Appeals' decision of January 15, 1993, which conflicts with the decision of the South Carolina Supreme Court in Gunter v. State, on the ex post facto question, and with this Court's decision in Preiser v. Rodriguez, 411 U.S. 475, 36 L.Ed.2d 439, 93 S.Ct. 1827 (1973) on the threshold question of federal jurisdiction under 42 U.S.C.

§1983.

I.

FEDERAL JURISDICTION FOR ROLLER'S CHALLENGE OF SOUTH CAROLINA'S PAROLE RELEASE SYSTEM WAS NOT PROPER UNDER 42 U.S.C. §1983, AND THE FOURTH CIRCUIT ERRED IN HOLDING IT WAS. THE PRISONER'S PETITION REACHES THE VERY "CORE OF HABEAS CORPUS" AND, BECAUSE IT DOES, IT REQUIRES THE PETITIONER TO EXHAUST HIS REMEDIES IN THE STATE COURTS OF SOUTH CAROLINA, BEFORE PROCEEDING TO THE FEDERAL COURTS.

Section 1983 is not available to test the application of the challenged parole law. The action is cognizable only in habeas corpus. Preiser v. Rodriguez, 411 U.S. 475 (1973), states the rule that controls here:

[W]e hold today that when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he

seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus. [emphasis added]

Id. This holding forecloses Appellee's §1983 action here. Preiser also teaches that "a §1983 is a proper remedy for a state prisoner who is making a constitutional challenge to the conditions of his prison life, but not to the fact or length of his custody." Id. at 499. The District Court relied on Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978), which incorrectly interprets Preiser. The Fourth Circuit held in Strader that Preiser stands for the proposition that "§1983 may be used to challenge parole procedures" only when the prisoner seeks "consideration for parole." Relying thus on Strader, the District Court is then able to conclude that Roller's use of §1983 is proper

because he "does not say he is entitled to parole."

Roller may not in so many words say he is entitled to parole, but that is what his lawsuit is all about. However loudly Roller may protest to the contrary, he must be challenging either the fact or the duration of his physical imprisonment, and the relief he seeks amounts to a determination that he is entitled to a speedier release from that imprisonment. He has made no allegations challenging the fact of his imprisonment, so that leaves the duration of his imprisonment as the only other possibility. (It needs no argument that Roller is not challenging the conditions of his prison life. That never was an issue.) And it does no good for Roller to insist that he is only "seeking his statutory parole hearing and not his

release." Appellee is at great pains to build his ex post facto argument on the major premise that the extra year between parole reconsideration hearings increases "the severity of his punishment" because this extra year, by Roller's own assertion, "increases the minimum amount of time the prisoner serves incarcerated." Whatever Roller wants to call it, the undeniable import of his argument amounts to nothing less than a challenge of the duration of his physical imprisonment.

Roller cannot have it both ways. Either he is challenging the increase in the duration of his sentence as constituting an ex post facto violation when applied to him, in which case the action lies solely in habeas corpus (Preiser, 411 U.S. at 500) and must be played out in the South Carolina state courts. Or he is

not challenging that increase, in which case it is a mystery just what he might be challenging as the retroactive disadvantage supposed to be substantial enough to violate the Ex Post Facto Clause.

Assuming Roller is not engaging in mystery, it is clear that the core of his ex post facto challenge, which attacks some retroactively applied decrease in the frequency of parole consideration hearings, is a challenge to future confinement in order to obtain an earlier release. To call it anything else is semantic subterfuge. The Fourth Circuit itself has said as much in two cases coming after Strader and interpreting Preiser. Section 1983 may not be used in place of habeas corpus, as a way of getting around the Writ's requirement that the Petitioner first exhaust his

state remedies. Leonard v. Hammond, 804 F.2d 838 (4th Cir. 1986); Todd v. Baskerville, 712 F.2d 70 (4th Cir. 1982).

Insofar as Strader ignores all this, it simply gets Preiser wrong. And in so doing, Strader needlessly compounds the problem, already "difficult enough," Hamlin v. Warren, 664 F.2d 29, 33 (4th Cir. 1981) (Winter, C.J. dissenting), cert. denied, 455 U.S. 911 (1982), confronting state and federal courts alike: How to sort through the frustrating conflict between the civil rights and habeas corpus remedies for state prisoners. The heart of this conflict and, more important, how we finally resolve the conflict, implicates our deepest concern for and understanding of certain fundamental notions of federalism and all that that bedrock principle entails in the way of comity

between the federal government and the several states. To rely on Strader, we believe, undermines federalism and upsets the delicate balance which comity helps to keep. Braden v. 30th Judicial Circuit of Kentucky, 410 U.S. 484 (1973) (exhaustion of state-court remedies ensures comity between federal and state courts). For, what Strader suggests is that South Carolina's right to exercise concurrent jurisdiction with the federal courts in deciding questions of federal constitutional law need not be accorded the full respect that federalism says is its due, and may in fact be ignored altogether whenever a state prisoner, crafty enough to capitalize on the confusion now troubling the federal courts, renames his habeas corpus petition a §1983 claim for relief.

The Court should also recognize that

there is a further obstacle in the limitations on suits against the states imposed by the Eleventh Amendment. As this Court stated in the leading case of Will v. Michigan Dept. of State Police, 109 S.Ct. 2304, 2309 (1989), "Section 1983 provides a federal forum to remedy many deprivations of civil liberties, but it does not provide a federal forum for litigants who seek a remedy against a State for alleged deprivations of civil liberties." The Eleventh Amendment, as the Court put it, "bars such suits unless the State has waived its immunity." Id. And South Carolina, we would assure the Court, has never waived its immunity here. Further, although Will suggests that an action against a state official in his official capacity for prospective injunctive relief under §1983 is proper because such an action would not be

treated as an action against the state, the suggestion doesn't fit the case here. Id. at 2311, n.10. What Roller is challenging is not the official capacity action of a state official; what he is challenging is the system South Carolina has set up for reviewing paroles after a rejection. The difficulty in relying on Strader is thus complicated. And the only way out for the Court, we would suggest, is for the Court to overrule the Fourth Circuit's reliance on Strader in favor of the lucid reasoning expressed in Preiser and well followed by the Fourth Circuit in Todd and Leonard.

Finally, it is crucial for the Court to remember that South Carolina has in place adequate state-law remedies--the Uniform Post-Conviction Procedure Act, §17-27-10 et seq. and the Tort Claims Act, §15-78-10 et seq.--that have always

been available to Roller. He need only have availed himself of those remedies, which he has chosen not to do. Instead, Roller resorts to the Civil Rights statute in order to circumvent the exhaustion requirements of the habeas corpus statute. For this Court to countenance such highjinks even for a moment would return us to the state of affairs that existed in 1971, before Preiser dealt with the problem. It was a state of affairs that led one judge of the Second Circuit to lament, "[s]tate prisoners are increasingly resorting to the Civil Rights statutes in order to circumvent the [exhaustion] requirements of [the habeas corpus statute]." Rodriguez v. McGinnis, 451 F.2d 730 (2d Cir. 1971). The reasoning that should guide the Court's deliberations here is first stated in Preiser. Certainly the

Fourth Circuit decision does serious harm to federal-state comity. South Carolina would therefore request the this Court grant its petition for a writ of certiorari to consider the federal questions that this case has raised.

II.

THE 1986 STATUTORY AMENDMENT TO THE SOUTH CAROLINA CODE, WHICH INCREASES THE TIME BETWEEN PAROLE RECONSIDERATION HEARINGS FROM ONE TO TWO YEARS FOR OFFENDERS CONVICTED OF VIOLENT CRIME, IS AN INSUBSTANTIAL PROCEDURAL CHANGE. IT IS OUTSIDE THE PURVIEW OF THE EX POST FACTO CLAUSE, AS THE SUPREME COURT OF SOUTH CAROLINA HELD IN GUNTER v. STATE, 378 S.E.2d 443 (1989).

The ex post facto question isn't as simple as Roller and the Fourth Circuit have made it out to be. The Fourth Circuit wrongly equates parole eligibility in South Carolina with parole reconsideration. Once this equation is made, it is but a short step to the conclusion that the statutory change in

question violates the ex post facto prohibition. It is a short step because the equation, albeit an erroneous one, puts the question squarely under the well-established rule that parole eligibility is a substantive matter and attaches to the punishment. Change parole eligibility retroactively and to the prisoner's disadvantage, and the prohibition against ex post facto laws is violated.

True enough. But the point is wholly irrelevant to the question here. In South Carolina, a prisoner becomes eligible for parole on his sentence only once; thereafter, he is reconsidered for parole every year (in the case of non-violent offenders) or every two years (in the case of violent offenders). See S.C. Code Ann. §24-21-645 (Supp. 1987). Roller's date of eligibility for parole

has not changed; that date was fixed from the start. See S.C. Code Ann. §24-21-610 (1976), as amended. What has changed is the procedure governing the interval between parole hearings after a rejection. For Roller that interval used to be one year; now it is two years. This is all that has been changed. No punishment has been added to Roller's original sentence after the fact. His sentence has not been lengthened. His parole eligibility has not been revoked or altered in any way. No "gain time" credits have been lost retroactively. As the Supreme Court of South Carolina found in Gunter v. State, 298 S.C. 113, 378 S.E.2d 443 (1989), "the standards governing petitioner's parole eligibility have not been changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been

altered." The only change in Roller's situation is just this and nothing more --an insubstantial procedural change determining how frequently he will be reconsidered for parole.

South Carolina concedes that this change does operate to the prisoner's disadvantage, but it most certainly does not offend the Ex Post Facto Clause. Not all retroactive changes offend, a point well-established in the precedent of this Court:

[T]he prohibition of ex post facto laws does not extend to every change of law that "may work to the disadvantage of a defendant." It is intended to secure "substantial personal rights" from retroactive deprivation and does not "limit the legislative control of remedies and modes of procedure which do not affect matters of substance."

Portley v. Grossman, 444 U.S. 1311, 1312 (1980), quoting Dobbert v. Florida, 432 U.S. 282, 293 (1977). See also, Miller v. Florida, 107 S.Ct 2446, 2451 (1987);

Beazell v. Ohio, 269 U.S. 167, 171 (1925); Hopt v. Utah, 110 U.S. 574, 590 (1884).

This Court reminds us in Collins v. Youngblood, 110 S.Ct 2715, 2719 (1990), that we must go back to the beginnings of ex post facto analysis, to clear the books of much of the confusion that has arisen in recent years. In Beazell v. Ohio, 269 U.S. 167, 46 S.Ct. 68 70 L.Ed. 216 (1925), this Court confidently summarized the general rule of ex post facto analysis, which had its beginning in Calder v. Bull, 3 Dall. 386 (1798):

It is settled, by decisions of this Court so well known that their citation may be dispensed with, that any statute which punishes as a crime an act previously committed, which was innocent when done; which makes more burdensome the punishment for a crime, after its commission, or which deprives one charged with crime of any defense available according to law at the time when the act was committed, is prohibited as ex post facto [citations omitted].

Collins, which goes back to Calder via Beazell, reminds us of the Court's own "original understanding" of the Ex Post Facto Clause. Id. at 2719. That original understanding rejects the notion--now increasingly current in some circuits, and among them, the Fourth Circuit, in particular--that any change which alters the situation of a party to his advantage violates the Ex Post Facto Clause. Id. at 2723. Collins emphasizes, in both its majority and concurring opinions, that the Ex Post Facto Clause "was intended to secure substantial personal rights against arbitrary and oppressive legislation." Id. at 2721 and 2727, quoting Malloy v. South Carolina, 237 U.S. 180, 183 (1915). Just what alterations of procedure will be held to be of sufficient moment to transgress the constitutional prohibition

"cannot be embraced within a formula or stated in a general proposition. The distinction is one of degree." Collins at 2727, quoting Malloy.

The Fourth Circuit's reasoning leaves no room for this tried and true distinction. It leaves no room for case-by-case analysis of ex post facto problems based on the countless variations of fact these cases present. The Fourth Circuit's analysis reduces all levels of factual complexity to the lowest common denominator of simplicity: all changes in the law which operate retroactively to the disadvantage of the convicted criminal, no matter how slight, violate the prohibition against ex post facto laws. This is the inescapable implication of the Fourth Circuit's reasoning when it refuses to recognize the distinction between the facts

presented here and the facts presented in Akins v. Snow, 922 F.2d 1558 (11th Cir. 1991), a case about which Roller makes much ado.

Whether the Fourth Circuit sees it or not, this case is distinct from Akins, and the distinction is based on an important matter of substance and degree, one which this Court should recognize under Collins v. Youngblood. As a matter of law and fact, the situation presented in Akins is vastly different from the situation here. In Akins, the interval between parole reconsideration hearings after a denial was increased from one year to eight years. This was even longer than it took to become eligible for parole in the first instance, which was seven years in Akins' case. The Eleventh Circuit equated the period between parole hearings with parole

eligibility itself. It did so on the basis of its finding that the Georgia legislature "considers a parole reconsideration hearing an essential and important part of parole eligibility." 922 F.2d at 1562. (At this point, it is important to emphasize, once again, that in South Carolina parole eligibility and parole reconsideration are statutorily two different things, separate and distinct.) And since parole eligibility is a part of the criminal punishment, it was then easy for the Akins Court to conclude that the change increased the punishment retroactively and therefore violated the prohibition against ex post facto laws.

South Carolina would not deny that even under its own parole system such a change as was at issue in Akins would violate the Ex Post Facto Clause.

Clearly, any increase of seven years, from one to eight years between parole reconsideration hearings, operates as a substantial disadvantage by denying the inmate a meaningful opportunity for a parole hearing. See Rodriguez v. U.S. Parole Commission, 594 F.2d 170, 174-175 (7th Cir. 1979). Such a degree of change is of sufficient moment to transgress the constitutional prohibition. This is how Collins would approach the Akins problem. Looking at the facts of the case at bar, Collins would say that nothing of the kind has occurred here. Roller has had, and still enjoys, every meaningful opportunity for parole under South Carolina's system of paroles. In fact, Roller was recently reconsidered for parole in October of 1992, though he was ultimately again denied it.

South Carolina has more freedom than

Georgia to experiment with changes in parole reconsideration, because South Carolina's parole laws do not make parole reconsideration an integral or essential part of parole eligibility, as do Georgia's parole laws. South Carolina should not lose its legitimate freedom to experiment with its parole system in the way that it has distinguished between parole reconsideration hearings for violent and non-violent offenders. South Carolina will lose a large part of that legitimate freedom to experiment if it is not given the chance to challenge the Fourth Circuit's opinion. This court has well recognized that the several states should be encouraged to develop their own parole systems and be allowed to experiment with ways of improving those parole systems. Greenholtz v. Inmates of Nebraska Penal and Correctional Complex,

442 U.S. 1 (1979). The Fourth Circuit's approach to ex post facto analysis, as evinced here, undermines this Court's wise concern for the right of every state to fashion its own parole system, leaving to each state as much freedom as possible under the federal constitution. The Court should grant South Carolina's petition and examine the Fourth Circuit's ex post facto analysis in this case. We think that the Court will find that on this question the Fourth Circuit is indeed very far out of line with the pronouncements of this Court.

CONCLUSION

South Carolina comes forward with this petition not only because it believes that it is right and the Fourth Circuit is wrong on the questions this case presents. South Carolina comes forward because it must also try to vindicate its

parole system of the constitutional censure laid up against it by the Fourth Circuit. For that censure, if allowed to stand, will certainly place an economic burden on South Carolina. If allowed to stand, the Fourth Circuit's opinion will force South Carolina to restructure the entire process for scheduling and hearing parole reconsiderations on all of its most serious, violent offenders who are in a position similar to that of the Appellee, Gary Lee Roller.

The Fourth Circuit's opinion has another bad effect. It discourages states from engaging in fair and wise experimentation with their parole procedures for fear of violating the Ex Post Facto Clause. And, by characterizing the prisoner's petition as cognizable under 42 U.S.C. §1983 instead of one properly coming under habeas

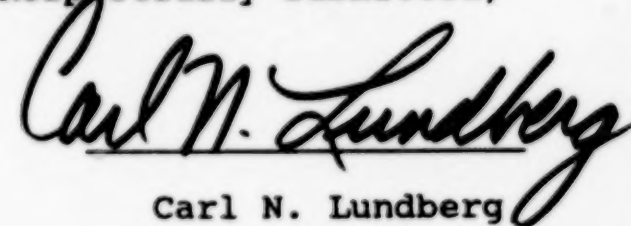
corpus and requiring exhaustion of state remedies in South Carolina, the Fourth Circuit did it in a way that ignores the real purpose of the prisoner's petition. Roller wants an earlier release. South Carolina has had its parole rescheduling procedure in place since 1986, and it has worked well over the years proving itself to be fair and efficient. Non-violent offenders, because they are less dangerous and may have shorter sentences, come up for parole reconsideration every year; violent offenders, because they are more dangerous and usually have longer sentences, are reconsidered every two years. This is a process based on good

sense, fairness, and wide experience with both success and failure.

South Carolina asks to be heard.

Respectfully submitted,

March 5, 1993



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PUBLISHED
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

No. 91-6688

Gary Lee Roller,)
Plaintiff-Appellant)
v.)
Michael J. Cavanaugh,)
Executive Director of)
the South Carolina De-)
partment of Probation,)
Parole, and Pardon)
Services; South Caro-)
lina Department of)
Probation, Parole,)
and Pardon Services,)
Defendants-Appellees)

Appeal from the United States District
Court for the District of South Carolina,
at Columbia; Henry Michael Herlong, Jr.,
District Judge

(CA-90-3054-3-20-J)

Argued: December 3, 1992

Decided: January 15, 1993

Before RUSSELL and HALL, Circuit
Judges, and MORGAN, United States
District Judge for the Eastern District

Appendix 1

Roller v. Cavanaugh

of Virginia, sitting by designation.

Reversed and remanded by published
opinion. Judge Hall wrote the opinion, in
which Judge Russell and Judge Morgan
joined.

COUNSEL

ARGUED: W. Gaston Fairey, FAIREY &
PARISE, P.A., Columbia, South Carolina,
for Appellant. Carl Norman Lundberg,
Chief Legal Counsel, SOUTH CAROLINA
DEPARTMENT OF PROBATION, PAROLE, AND
PARDON SERVICES, Columbia, South
Carolina, for Appellees. ON BRIEF: Edwin
E. Evans, Chief Deputy Attorney General,
Columbia, South Carolina, for Appellees.

Appendix 2

OPINION

HALL, Circuit Judge:

Gary Lee Roller appals an order of the district court granting summary judgment for the defendants in Roller's 42 U.S.C. §1983 suit challenging the frequency of his parole reconsideration hearings. We must decide whether a statutory amendment increasing the length of time between parole reconsiderations from every year to every two years is an unconstitutional ex post facto law if applied to prisoners whose crimes were committed before the amendment. Concluding that it is, we reverse.

I.

In early 1983, Gary Roller was convicted of voluntary manslaughter and grand larceny in South Carolina state

court. Both of these crimes occurred on December 13, 1982. On March 25, 1983, he was sentenced to consecutive terms of imprisonment of thirty and five years. At that time, a South Carolina statute provided that, within ninety days of the prisoner's becoming eligible for parole, the Parole Board would review the case and determine whether to grant parole. If the Board decided not to grant parole, "the prisoner's case shall be reviewed every twelve months thereafter for the purpose of such determination." Former S.C. Code 24-21-620 (1976 & Supp. 1981). In 1986, this statute was amended to make reconsideration of parole for violent offenders less frequent -- every two years. S.C. Code §24-21-645 (1989 & Supp.

1991). The date at which a prisoner initially becomes eligible for parole, however, was not changed.

In 1990, Roller became eligible for parole. On October 31, 1990, the Board rejected parole, and advised Roller that his next hearing would be held October 31, 1992.¹

On December 28, 1990, Roller filed this suit under 42 U.S.C. §1983 against the members of the Parole Board in their official and personal capacities. He sought monetary, declaratory, and injunctive relief. The gravamen of his claim was that application of the less-

¹ We were advised at oral argument that this hearing was held, and parole was denied.

frequent parole review to him violated the federal constitution's prohibition of ex post facto laws.

The defendants moved for summary judgment. The magistrate recommended that the motion be granted. Over Roller's objections, the district court adopted the magistrate's recommendation.

Roller appeals.

II.

A.

The district court held that Roller's official-capacity claims for damages were not cognizable under §1983, see Will v. Michigan Dept. of State Police, 491 U.S. 58 (1989), and that the defendants had

not overstepped their qualified immunity² so as to subject themselves to personal liability. See Harlow v. Fitzgerald, 457 U.S. 800 (1982). On appeal, Roller does not challenge these rulings. Because, however, prospective relief to stop unconstitutional practices by states is available in federal courts, Ex parte Young, 209 U.S. 123 (1908), Roller's claims for declaratory and injunctive relief are not affected by the defendants' immunities. Pulliam v. Allen, 466

² Because qualified immunity suffices to shield the defendants from personal liability, we need not decide whether the scheduling of parole reconsiderations is performance of a quasi-judicial function, for which the defendants would have absolute immunity. See generally, Forrester v. White, 484 U.S. 219, 225-229 (1988); Pope v. Chew, 521 F.2d 400, 405 (4th Cir. 1975).

B.

In 1973, in the midst of an unprecedented influx of civil rights suits by prisoners, the Supreme Court held that when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus.

Preiser v. Rodriguez, 411 U.S. 475, 509 (1973). The defendants here argue that Roller is attacking a part of his sentence -- parole eligibility -- and §1983 does not provide relief. The Preiser distinction is important here because Roller has not exhausted his

Roller v. Cavanaugh

state remedies on his ex post facto claim -- a general prerequisite to federal habeas corpus relief, but not to a §1983 suit.

In Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978), we held that §1983 was the proper vehicle for a defendant who sought to preclude a state parole board from considering allegedly invalid prior convictions. Because the petitioner did not assert that he was entitled to parole, "now or ever," no exhaustion of the state habeas remedy was required. Like the inmate in Strader, Roller does not say he is entitled to parole. We follow Strader and find that Roller has stated a cognizable §1983 claim.

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III.

A.

The Constitution prohibits both the federal and state legislatures from passing ex post facto laws. U.S. Const. art I, §9, cl. 3 and §10 cl. 1. Neither Congress nor the states may "enact any law 'which imposes a punishment for an act which was not punishable at the time it was committed; or imposes additional punishment to that then described.'" Weaver v. Graham, 450 U.S. 24, 28 (1981) (quoting Cummings v. Missouri, 4 Wall. 277, 325-26 (1867)). Though there is no constitutional requirement that a state permit parole for ~~Roller~~ ~~earl Cavanaugh~~ from

confinement, Greenholtz v. Inmates of Nebraska Penal & Correctional Complex, 442 U.S. 1 (1979), statutes providing for parole are "part of the law annexed to the crime at the time of the person's offense." Schwartz v. Muncy, 834 F.2d 396, 398 n.8 (4th Cir. 1987) (quoted in Fender v. Thompson, 883 F.2d 303, 305 (4th Cir. 1989)).

The ex post facto clauses are a restriction on the power of government and operate without regard to the affirmative "rights" of the individual. Consequently, it is immaterial to an ex post facto challenge to computation of a release or parole eligibility date that the prisoner does not have a "vested" liberty or property right in parole,

Roller v. Cavanaugh

"good time," or the like. Weaver, 450 U.S. at 29-30 (criticizing state court for rejecting ex post facto claim by finding no "vested right" to good time credits).

The South Carolina Supreme Court has rejected a challenge identical to Roller's Gunter v. State, 298 S.C. 113, 378 S.E.2d 443 (1989).

B.

Four of our sister courts of appeals have directly addressed whether a retroactive reduction in the frequency of parole consideration violates the ex post facto clause. Three have held that it does, though the Ninth Circuit's opinion

was vacated on other grounds and is thus a nullity. Rodriguez v. United States Parole Comm'n, 594 F.2d 170 (7th Cir. 1979) (parole reconsideration changed from one-third point in sentence to every eighteen months; ex post facto clause violated as to a prisoner serving only a two-year sentence); Watson v. Estelle, 859 F.2d 105 (9th Cir. 1988), vacated, 886 F.2d 1093 (1989); Akins v. Snow, 922 F.2d 1558 (11th Cir.), cert. denied, 111 S.Ct. 2915 (1991); but see Bailey v. Gardebring, 940 F.2d 1150 (8th Cir. 1991), cert. denied, 112 S.Ct. 1516 (1992) (lead judge held that administrative rule was not a "law" subject to ex post facto clause; one judge concurred only in the result; the

third dissented).

In Akins, the Eleventh Circuit considered a Georgia statute that decreased the frequency of parole hearings from once a year to once every eight years. The court held that this change affected the substantive rights of persons who committed crimes before its enactment, and was not simply a "procedural change." The court reasoned:

Since the [parole board] is required to hold some type of parole reconsideration hearing **before** granting parole, an inmate is effectively **ineligible** for parole between two reconsideration hearings. Because an inmate is not paroled without a

parole reconsideration hearing, the hearing must be considered an essential part of parole eligibility. 922 F.2d at 1562 (boldface in original).

The appellees cannot convincingly distinguish Akins. They concede that a seven-year increase in a prisoner's wait between reconsiderations is so long that it is substantive, but assert, "[a]s if you could kill time without injuring eternity,"³ that a one-year wait is procedural" and presents no ex post facto difficulty. See Dobbert v. Florida, 432 U.S. 282 (1977) (ex post facto clause

³ Thoreau, *Walden; or, Life in the Woods*, "Economy," reprinted in *Walden and Other Writings* by Henry David Thoreau 111 (Bantam Classic ed. 1981).

does not "limit the legislative control of remedies and modes of procedure which do not affect matters of substance").⁴

We are not willing to disparage the "substance" of a year, especially a year in prison.

Defendants also point out that Roller becomes and remains "eligible" for parole just as he would have under the law in effect when he committed his crimes. The defendants do not, however, identify any

⁴ Cf. cases in which changes in the matter of reimposing sentence after the original sentence is set aside have been held to present no ex post facto problem. Collins v. Youngblood, 497 U.S. 37 (1990) (Texas statute allowing appellate court to reform illegal sentence); Evans v. Thompson, 881 F.2d 117 (4th Cir. 1989), cert. denied, 110 S.Ct. 3255 (1990) (Virginia statute providing that capital defendants whose sentences are vacated may be resented before a new jury).

benefit flowing from the status of "eligibility" other than the right to be heard and considered for parole. Eligibility without consideration is a cold comfort.

This circuit has no case so directly on point as Akins; however, two cases provide us considerable guidance. In Schwartz v. Muncy, 834 F.2d 396 (4th Cir. 1987), the court reviewed a Virginia statute that increased the time before an inmate would become eligible for parole on existing sentence if the inmate committed a third offense after the statute's effective date. The court held that the statute increased the punishment for a crime completed before its enactment, and thus the statute violated

the ex post facto clause.

In Fender v. Thompson, 883 F.2d 303 (4th Cir. 1989), a state inmate was serving a life sentence. Under the state law in effect at the time of the crime, the inmate was eligible for parole after fifteen years. The state legislature later passed a law revoking the parole eligibility of inmates who escaped while serving life sentences. The inmate escaped after passage of the new law, and his eligibility for parole was revoked. We held that, though the state could punish escape in almost any manner it pleased, it could not do so by increasing the punishment for crimes committed before the new escape statute was enacted. We stated this general rule:

[S]tatutes enacted or amended after a prisoner was sentenced cannot be applied to alter the conditions of or revoke his or her preexisting parole eligibility

883 F.2d at 306. South Carolina has undoubtedly applied its new statute to "alter the conditions of . . . [Roller's] preexisting parole eligibility." Indeed, it has effectively "revoked" eligibility for an extra year following a denial.

The judgment is reversed, and the case is remanded with instructions to grant declaratory, and, if necessary, injunctive, relief in favor of Roller.⁵

⁵ See Steffel v. Thompson, 415 U.S. 452, 468-471 (1974) (district court may anticipate that state authorities will comply with a declaratory judgment and thereby forego issuing an injunction).

Our decision does not, of course, require or even suggest that Roller be paroled. South Carolina need never parole him, so long as it considers the question every year.

REVERSED AND REMANDED

UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

No. 91-6688
(CA-90-3054-3-20-J)

FILED: February 5, 1993

GARY LEE ROLLER,
Plaintiff-Appellant,

versus

MICHAEL J. CAVANAUGH, Executive
Director of the South Carolina
Department of Probation, Parole,
and Pardon Services; SOUTH CAROLINA
DEPARTMENT OF PROBATION, PAROLE, AND
PARDON SERVICES,
Defendants-Appellees.

ORDER

Appellees have filed a motion to stay
mandate pending the filing of a petition
for writ of certiorari with the United
States Supreme Court.

The Court grants the motion to stay

mandate until March 8, 1993 pursuant to
the provisions of Rule 41(b) of the
Federal Rules of Appellate Procedure.

Entered at the direction of Judge Hall
with the concurrence of Judge Russell and
Judge Morgan, United States District
Judge sitting by designation.

For the Court

/s/ Bert M. Montague

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
COLUMBIA DIVISION

CA No. 3:90-3054-20J

Gary Lee Roller, 116220)
Plaintiff,)
vs.)
Michael J. Cavanaugh,)
Executive Director of)
the South Carolina)
Department of Pro-)
bation, Parole, and)
Pardon Services,)
et al.)
Defendants.)

ORDER

This matter is before the court with the Report and Recommendation of the United States Magistrate Judge, made in accordance with 28 U.S.C. §636(b) and Local Rule 19.02 (D.S.C.). The recommendation has no presumptive weight, and the responsibility to make a final determination remains with the United

States District Court. Matthews v. Weber, 423 U.S. 261 (1976). The court is charged with making a de novo determination of those portions of the Report and Recommendation to which specific objection is made. The court may accept, reject, or modify, in whole or in part, the recommendation made by the magistrate judge or recommit the matter to him with instructions. 28 U.S.C. §636(b)(1).

The plaintiff, Gary Lee Roller ("Roller"), is presently incarcerated by the South Carolina Department of Corrections on convictions of voluntary manslaughter and grand larceny. Roller was sentenced on March 25, 1983, to serve consecutive terms of thirty (30) and five (5) years. Roller initially became eligible for parole on October 27, 1990.

Roller received a parole hearing on

October 31, 1990, at which he was rejected for parole and notified his next hearing would be October 31, 1992.

S.C. Code Ann. §24-21-645 (Law. Co-Op. 1976) at the time of Roller's sentencing provided that all inmates would be reviewed for parole annually following an initial rejection for parole. That section was amended, effective June 3, 1986, to provide that a violent offender would not be rescheduled for another parole hearing for a period of two (2) years from the date of his rejection.

Roller brought this action under 42 U.S.C. §1983 to challenge the application of the two year waiting period for review of parole from the 1986 law. Roller contends that the application of the 1986 law to him violates the ex post facto clauses of the United States and South Carolina Constitutions and the due

process clauses of the South Carolina Constitution and the fourteenth amendment of the United States Constitution.

Both parties filed objections to the Report and Recommendation of Magistrate Judge Carr.

Roller states three objections. First, Roller contends that the magistrate judge misunderstood his claims which had the effect of amending his complaint. The court finds that Magistrate Judge Carr properly understood and fairly addressed Roller's claims. This objection is without merit.

Second, Roller asserts that he should be allowed to recover monetary damages from the defendants in their individual capacities and prospective relief from the defendants in the official capacity. The magistrate judge properly addressed each of these claims. The defendants in

their individual capacities are protected by a qualified immunity. Harlow v. Fitzgerald, 457 U.S. 800 (1982). Roller has made no showing of a lack of good faith to defeat this immunity. Therefore, the defendants are not subject to monetary damages.

Roller contends that he should be entitled to injunctive relief under Ex Parte Young, 209 U.S. 123 (1908). The magistrate judge properly stated that injunctive relief was the only relief that Roller could seek. However, the fact that Roller could seek injunctive relief against the defendant's in their official capacities does not mean that he was entitled to such relief. Therefore, the second objection is without merit.

Third, Roller states that he "realleges each and every pleading, affidavit, motion, and attachment put forth in this

action heretofore, as if repeated in full verbatim herein." A restatement of the allegations of the complaint is not a meritorious objection.

The defendants also objected to the Report and Recommendation of Magistrate Judge Carr. The defendants object to the conclusion that "§1983 can be used to challenge parole procedures", which is based on an interpretation of Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978). This court finds that the magistrate judge's interpretation of Strader is correct and that Strader is the valid law of this circuit. Therefore, this objection is without merit.

Further, the defendants cite Will v. Mich. Dept. of State Police, 491 U.S. 58 (1989) to assert that "Section 1983 ... does not provide a federal forum for litigants who seek a remedy against a

State for alleged deprivations of civil liberty." Id. at 66. However, the Supreme Court in Will went on to say that "a state official in his or her official capacity, when sued for injunctive relief, would be a person under §1983 because 'official-capacity actions for prospective relief are not treated as actions against the State.'" Id. at 71 n. 10 (citing Kentucky v. Graham, 473 U.S. 159 (1985); EX Parte Young, 209 U.S. 123 (1908)). The claims against the defendants in their official capacities in so far as they sought injunctive relief were properly brought under 1983.⁶ Therefore, this objection by the defendant is without merit.

Based on the foregoing, this court

⁶ This is true even though this court find that the plaintiff is not entitled to relief on the merits of the claims.

finds that the objections are without merit. Magistrate Judge Carr's Report and Recommendation is adopted and incorporated herein by reference. Therefore, **IT IS ORDERED** that the defendants' motion for summary judgment is hereby granted.

IT IS SO ORDERED.

S/Henry M. Herlong, Jr.

Henry M. Herlong, Jr.

United States District

Judge

Greenville, South Carolina

November 1, 1991

UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
COLUMBIA DIVISION

CA No. 3:90-3054-20J

Gary Lee Roller
Plaintiff

v.

Michael J. Cavanaugh, Executive Director
of the South Carolina Department of
Probation, Parole and Pardon Services, et
al.

Judgment in a Civil Case

Decision by Court. This action came to
hearing before the Court. The Court
having adopted the recommendation of the
U.S. Magistrate Judge, and having duly
heard and granted the defendants' motion
for summary judgment IT IS ORDERED AND
ADJUDGED

That summary judgment is hereby entered
for defendants Michael J. Cavanaugh,
Executive Director of the South Carolina
Department of Probation, Parole, and

Pardon Service and the South Carolina
Department of Probation, Parole, and
Pardon Service.

November 12, 1991

Ann A. Birch
Clerk

S/ Carol E. Moment
(By) Deputy Clerk

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
COLUMBIA DIVISION

CA No. 3:90-3054-15J

Gary Lee Roller, 116220)
Plaintiff,)
-versus-)
Michael J. Cavanaugh,)
Executive Director of)
the South Carolina De-)
partment of Probation,)
Parole, and Pardon)
Services, et al,)
Defendants.)

REPORT AND RECOMMENDATION

This civil rights complaint brought by a state prisoner proceeding pro se is before the undersigned United States Magistrate Judge for a report and recommendation on the defendants' summary judgment motion under Rule 56 of the Federal Rules of Civil Procedure. 28 U.S.C. §636(b).

The Plaintiff, Gary Lee Roller

(Roller), is presently incarcerated at a facility of the South Carolina Department of Corrections. Roller was convicted in the Chester County Court of General Sessions of voluntary manslaughter and grand larceny committed on December 13, 1982. He was sentenced on March 25, 1983, to serve thirty (30) years for voluntary manslaughter and five (5) years consecutive for grand larceny. He initially became eligible for parole on October 27, 1990, pursuant to the parole eligibility statute in force on the date of his offense.

Roller received a parole hearing on October 31, 1990, at which time he was rejected for parole, notified of the reasons for the rejection, and informed that his next hearing should be October 31, 1992.

Roller brings this civil rights action

pursuant to 42 U.S.C. §1983 against Michael J. Cavanaugh, Executive Director of the South Carolina Department of Probation, Parole, and Pardon Services, as well as all present members of the Pardon and Parole Board. The defendants are being sued in their official and individual capacities for compensatory and punitive damages, declaratory relief, and a court order enjoining the defendants from applying the South Carolina Omnibus Criminal Justice Improvement Act (Act) of 1986 related to the manner and timing of parole reviews to Roller.

Roller asserts that the defendants' application of the Act to him increasing the time between parole reconsideration hearings from one (1) to two (2) years is violative of the prohibition against ex post facto laws and denies him due

process under the Constitution of the United States.

Section 24-21-645 of the South Carolina Code of Laws (Law. Co-op. 1976) made effective June 15, 1981, provided that all inmates would be reviewed for parole annually following an initial rejection for parole. That section was amended effective June 3, 1986, to provide that a violent offender would not be rescheduled for another parole hearing for a period of two (2) years from the date of his rejection.

Roller contends:

1. The defendants application of the 1986 laws to Roller increases the punishment he must suffer for his crimes and is thus a impermissible retroactive application in violation of the ex post facto

clause.

2. Application of the 1986 laws to the plaintiff denies him a substantial protected liberty interest in violation of the due process clause of the fourteenth amendment of the United States Constitution.

3. The application of 1986 laws to the plaintiff violates due process and ex post facto clauses of the South Carolina Constitution.

On June 4, 1991, the defendants filed a motion to dismiss or for summary judgment. They argue that they are immune from liability under the eleventh amendment and not amenable to suit under §1983. Further, they assert they are

entitled to defense of qualified immunity. In addition, they argue that the plaintiff has not exhausted any state remedies as required and that the changes in parole procedures do not violate the ex post facto or due process clauses of the Constitution.

A copy of the defendants' motion and supporting memorandum was provided Roller on June 13, 1991, along with an explanation of dismissal and summary judgment procedures with pertinent extracts from Rules 12 and 56 of the Federal rules of Civil Procedure similar to that required by Roseboro v. Garrison, 528 F.2d 309 (4th Cir. 1975).

In response, Roller filed his opposition to the defendants' motion, memorandum in support of the opposition, his own affidavit, a motion for appointment of counsel, and an affidavit

in support of motion for appointment of counsel. Roller's motion for appointment counsel was denied on July 15, 1991. Hence, it appears that the defendants' motion is ready for consideration.

A review of the record and relevant case law indicates that the defendants' summary judgment motion should be granted.

Roller's claim for damages against the South Carolina parole officials in their official capacity is barred by the eleventh amendment. See, Edelman v. Jordan, 415 U.S. 651, 662-63 (1974). Further, the parole officials sued in their individual capacities are entitled to absolute immunity under Pope v. Chew, 521 F.2d 400 (4th Cir. 1975). In Pope, the Fourth Circuit held that parole officials involved in the quasi-judicial function of considering parole

applications are entitled absolute personal immunity. 521 F.2d at 405-06. The defendants in their individual capacities acting as parole officials are protected by the qualified immunity under Harlow v. Fitzgerald, 457 U.S. 800 (1982). Further since the constitutional question raised by Roller is unsettled, qualified immunity is an acceptable alternate ground for dismissal. See, Anderson v. Creighton, 107 S.Ct. 3034 (1987). Nonetheless, a defendant sued in his or her capacity as a Parole Board member could be subject to an injunction under the Ex Parte Young, 209 U.S. 123 (1908) (exception to eleventh amendment immunity). Roller has alleged an ongoing violation bringing his claim within the purview of the Young exception. Papasan v. Allain, 478 U.S. 265 (1986), McConnell v. Adams, 829 F.2d 1319 (4th Cir. 1987),

cert. denied, ____ U.S. ____, 108 S.Ct. 1731 (1988). Therefore, only to the extent that Roller seeks injunctive relief preventing these officials future conduct, may this action proceed.

The defendants' argument that Roller's action is designed ultimately to shorten the period of his incarceration and thus is subject to the exhaustion requirement of 28 U.S.C. §2254(b) is unfounded. While a §1983 suit is not a substitute for a writ of habeas corpus, here Roller seeks only consideration for parole, not release or shortening of the period of incarceration. Prieser v. Rodriguez, 411 U.S. 475 (1973). Under these circumstances, the Fourth Circuit has held that §1983 may be used to challenge parole procedures. Strader v. Troy, 571 F.2d 1263 (4th Cir. 1978).

Initially, there is no constitutional

right to parole unless the state creates a protectable liberty interest in the establishment of a parole system. See, Greenholtz v. Nebraska Penal Inmates, 442 U.S. 1, 99 S.Ct. 2010 (1979). Such an interest arises only when a parole statute provides that specific conditions mandate release. Damiano v. Florida Parole & Probation Commission, 785 F.2d 929 (11th Cir. 1986).

The plaintiff has no right to parole in South Carolina. S.C. Const. Art. IV, §14. Parole is a matter of grace bestowed by the government. Bearden v. State, 443 F.2d 1090 (1971). State law does not mandate parole even if certain conditions are met by an inmate. That is, the conditions listed in §24-21-640 must all be satisfied before the Board will consider exercising their discretion to release an inmate on parole. In the

event the Board denies parole to an inmate, it is required to give the inmate written notice of the reasons that the parole was rejected. It is uncontroverted that Roller was provided with the reasons for the denial of parole. His due process claims are without merit.

Next, Roller alleges that the application of the 1986 Act to him by the defendants violates the ex post facto clause of the United States Constitution. In 1982, when he committed his crimes, §24-21-645 provided that the frequency of parole reconsideration hearings would be every twelve (12) months following an initial rejection for parole. In 1986, §24-21-645 was amended to provide that parole reconsideration hearings for persons convicted of violent crimes as defined in §16-1-60 also effective June 3, 1986, would be held every two (2) years following an initial rejection. It is uncontested that the defendants have

applied these code sections retroactively to Roller.⁷

The United States Constitution, Art. I, §10 states in pertinent fact: "No state . . . shall pass any bill of attainder or ex post facto law . . ." In Fender v. Thompson, et al, 883 F.2d 303 (4th Cir. 1989), the Fourth Circuit held that the ex post facto clause "forbids . . . the state to enact any law which imposes a punishment for an act which was not punishable at the time it was committed, or imposes additional punishment than that then prescribed." Weaver v. Graham, 450 U.S. 24 (1981). Two critical elements must be present for a criminal or penal law to be ex post facto: it must be retrospective, that is it must apply to events occurring before its enactment, and it must disadvantage the

⁷ Roller's conviction for the crime of voluntary manslaughter is considered a violent crime subject to this section.

offender effected by it. Id. at 29.

Further, the Supreme Court has held:

"[T]he prohibition of ex post facto laws does not extend to every change of the law that 'may work to the disadvantage of a defendant.' It is intended to secure 'substantial personal rights' from retroactive deprivation and does not 'limit the legislative control of remedies and modes of procedure which do not effect matters of substance.' (quoting Dolbert v. Florida, 432 U.S. 282, 293 (1977)).

Portley v. Grossman, 444 U.S. 1311, 1312 (1980).

In Gunter v. State, the South Carolina

Supreme Court in addressing this issue

held:

On this issue, we find persuasive the holding of the California Supreme Court In Re: Jackson, 39 Cal.3rd 464, 703 Pac.2d 100 (1985). There the court held that a statutory amendment prolonging the time before reconsideration for parole was a procedural change outside the purview of the ex post facto clause. The court reasoned that the amendment did not alter the criteria by which parole suitability is determined, but rather only changed the frequency with which an inmate was given to demonstrate parole suitability. By the same token, the standards governing the petitioner's parole eligibility have not been changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been altered. We find no ex post facto violation in the application of the questioned statute to petitioner.

378 S.E.2d 443 (S.C. 1989).

No additional post-conviction punishment has been imposed because Roller's sentence has not been lengthened, his possibility of parole has not been revoked, and the conditions he must meet to be considered for parole eligibility

remain the same. The only change is a procedural one controlling how often Roller's case is reviewed for parole.

Lastly, Roller's allegation that application of the Act to him is violative of the South Carolina Constitution does not provide a basis for a §1983 suit. Section 1983 was intended to vindicate only federal rights determined under federal substantive law, not claims arising under state law. Weller v. Department of Social Services, 901 F.2d 387 (4th Cir. 1990); Clark v. Link, 855 F.2d 156 (4th Cir. 1988); See, Paul v. Davis, 424 U.S. 693 (1976); Riccio v. County of Fairfax, 907 F.2d 1459 (4th Cir. 1990).

In summary, inmates in South Carolina have no protected liberty interest in parole; lengthening of the time between parole reconsideration from one (1) to two (2) years does not offend the due process or ex post facto protections of

the United States Constitution, and §1983 is not available to test application of the Act to Roller under the South Carolina Constitution.

Accordingly, for the above stated reasons, it is recommended that the defendants' motion for summary judgment be granted.

Respectfully submitted,

Robert S. Carr
United States Magistrate Judge

Charleston, South Carolina
September 10, 1991

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AFFIRMED

100

Appendix 5

Appendix 50

(PCR). We grant certiorari, dispense with further briefing, and affirm.

Petitioner alleges that the application of three statutes to him violates the ex post facto clauses of the United States and South Carolina Constitutions.⁸ First, petitioner challenges S.C. Code Ann. §24-21-645 (Supp. 1987), which permits him to be reconsidered for parole only on a biannual basis. Under the statutory scheme in effect when petitioner committed the crime, he was eligible for reconsideration for parole every twelve (12) months. See S.C. Code Ann. §24-21-620 (Supp. 1987). In 1986, §24-21-645 was amended to provide that persons convicted of violent crimes, defined in §16-1-60 to include voluntary manslaughter,

⁸See U.S. Const. art. I, §10; S.C. Const. art. I, §4.

will be reconsidered for parole every two years.

On this issue we find persuasive the holding of the California Supreme Court in In re Jackson, 39 Cal.3d 464, 703 P.2d 100, 216 Cal. Rptr. 760 (1985). There the Court held that a statutory amendment prolonging the time before reconsideration for parole was a procedural change outside the purview of the ex post facto clause. Cf. Weaver v. Graham, 450 U.S. 24, 101 S.Ct. 960, 67 L.Ed.2d 17 (1981) (generally ex post facto clause does not apply to procedural changes). The Court reasoned that the amendment did not alter the criteria by which parole suitability is determined, but rather changed only the frequency with which an inmate was given to demonstrate parole suitability.

By the same token, the standards governing petitioner's parole eligibility

have not been changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been altered. We find no ex post facto violation in the application of the questioned statute to petitioner.

Second, petitioner challenges S.C. Code Ann. §24-13-650 (Supp. 1987), which prohibits any person convicted of a violent offense from being released under the work release program in the community where the crime was committed. It must be noted initially that we have found nothing in the statutes indicating that petitioner had a pre-existing right to be considered for work release in the community where the offense was committed. Therefore, it seems doubtful whether petitioner has made out a legitimate ex post facto claim.

Even assuming petitioner had

previously been eligible for work release in the community where the offense was committed, we find no ex post facto violation in petitioner being denied this possibility under §24-13-650. The Board of Corrections has discretion whether to allow an inmate even to participate in a work release program. See S.C. Code Ann. §24-3-20 (1976). Therefore, participation in a work release program is a privilege, giving rise to no vested rights cognizable under the ex post facto doctrine. People v. Miller, 79 A.D.2d 687, 434 N.Y.S.2d 37 (1980).

Further, in Morris v. Meacham, 718 P.2d 1354 (Okla. 1986), the Oklahoma Supreme Court upheld the retroactive application of a statutory amendment rendering the inmate ineligible for assignment to a work release program. The Court said that modes of procedure,

such as a security classification, do not affect matters of sufficient substance to invoke the prohibition against ex post facto laws. Cf. Mellinger v. Idaho Dep't of Corrections, 114 Idaho 494, 757 P.2d 1213 (Ct. App. 1988) (upholding implementation of stricter conditions of release).

In the present case, §24-13-650 does not deny petitioner consideration or even require him to face tougher criteria for the work release program. Rather, he is merely foreclosed from being released into the community in which he committed the crime. We find no ex post facto violation in applying this statute to petitioner.

Petitioner's remaining argument concerns supervised furloughs. As S.C. Code Ann. §24-13-710 (Supp. 1987) read at the time the offense was committed,

petitioner was at least theoretically capable of satisfying the criteria for obtaining a furlough. However, since that time the statute has been amended to include, among other things, requirements that the inmate be neither sentenced to more than five years nor convicted of a violent offense. Because petitioner received a sentence of thirteen (13) years for a violent offense, he is now foreclosed from being considered for a furlough.

In Milhouse v. Levi, 548 F.2d 357 (D.C. Cir. 1976), the court held that regulations adversely affecting an inmate's eligibility for furloughs are not subject to the constitutional prohibition against ext post facto laws. The Court distinguished furlough programs from parole, describing furlough programs

as internal rehabilitation procedures that are not an integral part of the sentencing process.

We agree that the furlough program is not a part of the sentencing process. As stated in Anders v. South Carolina Parole & Community Corrections Bd., 279 S.C. 206, 305 S.E.2d 229 (1983), the purpose behind the enactment of §24-13-710 was to help alleviate prison overcrowding. The purpose was not to confer substantial rights upon certain members of the prison population. We therefore hold that the application of §24-13-710, as amended, to petitioner does not amount to an ex post facto violation.

For the foregoing reasons, the denial of post-conviction relief is AFFIRMED.

S/George T. Gregory, Jr.

S/David W. Harwell

S/A. Lee Chandler

S/Ernest A. Finney, Jr.

S/Jean Hoefer Toal

**S.C. Code Ann. §24-21-610 (1976) enacted
June 15, 1981 (Parole Eligibility)**

"Section 24-21-610. In all cases cognizable under this chapter the Board may, upon ten days' written notice to the solicitor and judge who participated in the trial of any prisoner, parole such prisoner convicted of a felony and imprisoned in the state penitentiary, in any jail or upon the public works of any county:

(1) Who, if sentenced for not more than thirty years, shall have at least one third of the term;

(2) Who, if sentenced to life imprisonment or imprisonment for any period in excess of thirty years, shall have served at least ten years;

(3) Who, if he is a first offender and is sentenced for an indeterminate term

shall have served the minimum for which he was sentenced.

Provided, if after January 1, 1984, the Board shall find that the statewide case classification system provided for in Chapter 23 of this title has been implemented, that an intensive supervision program for parolees who require more than average supervision has been implemented, that a system for the periodic review of all parole cases in order to assess the adequacy of supervisory controls and of parolee participation in rehabilitative programs has been implemented, and that a system of contracted rehabilitative services for parolees is being furnished by public and private agencies, then in all cases cognizable under this chapter the Board may, upon ten days' written notice to the solicitor and judge who participated in

the trial of any prisoner, to the victim or victims, if any, of such felony, and to the sheriff of the county where the prisoner resides or will reside, parole such prisoner convicted of a felony and imprisoned in the state penitentiary, in any jail or upon the public works of any county:

(1) Who, if sentenced for the crime of murder, armed robbery, criminal sexual assault, assault and battery with intent to kill or kidnapping, shall have served at least one third of the term; provided, that for any other crime the prisoner shall have served at least one fourth of the term;

(2) Who, if sentenced to life imprisonment or imprisonment for any period in excess of forty years, shall have served at least ten years;

(3) Who, if he is a first offender and

is sentenced for an indeterminate term shall have served the minimum for which he was sentenced.

Provided, further, that the provisions of this section shall not affect the parole ineligibility provisions for murder and armed robbery as set forth respectively in Section 16-3-20 and Section 16-11-330.

Provided, further, that in computing parole eligibility, no deduction of time shall be allowed in any case for good behavior, but that after June 30, 1981, there shall be deductions of time in all cases for earned work credits, notwithstanding the provisions of Section 16-3-20, Section 16-11-330 and Section 24-13-230.

Notwithstanding the provisions of this section, the Board may parole any prisoner not sooner than one year prior

to the prescribed date of parole eligibility when, based on medical information furnished to it, the Board determines that the physical condition of the prisoner concerned is so serious that he would not be reasonably expected to live for more than one year. Notwithstanding any other provision of this section or of law, no prisoner who has served a total of ten consecutive years or more in prison shall be paroled until the Board has first received a report as to his mental condition and his ability to adjust to life outside the prison from a duly qualified psychiatrist or psychologist."

S.C. Code Ann. §24-21-620 (1976)
enacted June 15, 1981 (parole hearing
rescheduling)

"Section 24-21-620. Within the ninety-day period preceding a prisoner having served one-fourth of sentence, the Board, either acting in a three-member panel or meeting as a full Board, shall review the case, regardless of whether or not any application has been made therefor, for the purpose of determining whether or not such prisoner is entitled to any of the benefits provided for in this chapter; provided, that in cases of prisoners in confinement due to convictions for nonviolent crimes, an administrative hearing officer may be appointed by the Commissioner of Paroles and Pardon to review the case who shall submit to the full Board written findings of fact and

recommendations, which shall be the basis for a determination by the Board. Upon an affirmative determination, the prisoner shall be granted a provisional parole. Upon a negative determination, the prisoner's case shall be reviewed every twelve months thereafter for the purpose of such determination.

S.C. Code Ann. §24-21-645 (1976) enacted June 3, 1986 (parole hearing re-scheduling)

"Section 24-21-645. The Board may issue an order authorizing the parole which must be signed either by a majority of its members or by all three members meeting as a parole panel on the case, ninety days prior to the effective date of the parole; provided that at least two-thirds of the members of the Board must authorize and sign orders

authorizing parole for persons convicted of a violent crime as defined in Section 16-1-60. A provisional parole order shall include the terms and conditions, if any, to be met by the prisoner during the provisional period and terms and conditions, if any, to be met upon parole. Upon satisfactory completion of the provisional period, the Executive Director or one lawfully acting for him, shall issue an order, which, if accepted by the prisoner, shall provide for his release from custody.

Provided, that upon a negative determination of parole, prisoners in confinement for a violent crime as defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole."

**S.C. Code Ann. §24-21-650 (1976) enacted
June 3, 1986 (parole hearing re-
scheduling)**

"Section 24-21-650. The Board shall issue an order authorizing the parole which must be signed by at least a majority of its members, with terms and conditions, if any; provided, that at least two-thirds of the members of the Board must sign orders authorizing parole for persons convicted of a violent crime as defined in Section 16-1-60. Thereupon the supervisor of parole, or one lawfully acting for him, shall issue a parole order, which, if accepted by the prisoner, shall provide for his release from custody.

Provided, that upon a negative determination of parole, prisoners in confinement for a violent crime as

defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole."

**S.C. Code Ann. §16-1-60 (1976) enacted
June 3, 1986**

(Definition of violent crime)

"Section 16-1-60. For purposes of definition under South Carolina law a violent crime includes the offenses of murder, criminal sexual conduct in the first and second degree, assault and battery with intent to kill, kidnapping, voluntary manslaughter, armed robbery, drug trafficking as defined in Section 44-53-370(e), arson in the first degree, burglary in the first degree, and burglary in the second degree under Section 16-11-312(B)."